

23AVCV01252 23AVCV01252

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 23AVCV01252 Hearing Date: September 17, 2026 Dept: A14

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES
– NORTH DISTRICT

ALEXIS GARATE, a minor by and
through his Guardian Ad Litem, DIANA PEREZ,

Plaintiff,

v.

MAGUA MAYES II; DATRON KENDRIX
JR.; PALMDALE SCHOOL DISTRICT; and DOES 1 through 100, inclusive,

Defendants.

Case
Number 23AVCV01252

[TENTATIVE]

RULING ON MOTION

Date
of Hearing: September 17, 2026

Dept. A-14

Judge William H.
Forman

I.

Background

Plaintiff's counsel Angelo F. Campano of Campano Law Group, APC (together "Counsel") moves the Court to be relieved as counsel.

On October 30, 2023, Plaintiff Alexis Garate ("Plaintiff"), a minor by and through his Guardian Ad Litem Diana Perez ("Perez") filed a complaint against Defendants Magua Mayes II ("Mayes"), Datron Kendrix, Jr. ("Kendrix"), and Palmdale School District ("PSD") (collectively "Defendants"), asserting eight causes of action for (1) Negligence, (2) Motor Vehicle Negligence, (3) Negligence Per Se (Cal. Veh. Code, § 22350), (4) Negligence Per Se (Cal. Veh. Code, § 27318(c)), (5) Negligence Per Se (Cal. Veh. Code, § 22109), (6) Common Carrier Liability (Civ. Code, § 2100), (7) Negligent Entrustment, and (8) Negligent Hiring, Retention, Supervision, Training.

Plaintiff alleges that on September 28, 2022, while a passenger on a school bus owned, controlled, and managed by PSD and operated by Kendrix, a vehicle operated by Mayes struck the school bus while it was at a stop, causing Plaintiff to suffer injury. (Compl., ¶¶ 17-23.)

On January 17, 2025, Plaintiff's Counsel orally informed the Court that the case has settled at the FSC.

On January 28, 2026, Mayes filed his Answer and demanded a jury trial.

On January 29, 2026, Plaintiff filed a Notice of Settlement of Entire Case and the Court set an OSC hearing re dismissal and order of dismissal for April 2, 2026. The OSC was subsequently continued and set for September 17, 2026.

On August 18, 2026, Counsel filed
the present motion to be relieved. No opposition has been filed.

II.
Legal
Standard

Standard for Motion to be Relieved as Counsel – The Court has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 (“Notice of Motion and Motion to Be Relieved as Counsel-Civil”); (2) The motion must be accompanied by a declaration using form MC-052 (“Declaration in Support of Attorney’s Motion to Be Relieved as Counsel-Civil”) and “must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).”; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 (“Order Granting Attorney’s Motion to Be Relieved as Counsel-Civil”) and “must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order.”; (4) “The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case” either by personal service, electronic service, or by mail.

(Cal. Rules of Court, rule 3.1362(a) – (e).)

“If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) the service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to

locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.” (Cal. Rules of Court, rule 3.1362(d)(1).) “[C]urrent” means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned...is not, by itself, sufficient to demonstrate that the address is current.” (Id at rule 3.1362(d).)

III.

Discussion

Application – Counsel

moves to be relieved as counsel for Plaintiff. Counsel has substantially complied with the statutory requirements of Rule 3.1362 and has filed an MC-051 that contains all required information, is directed to Plaintiff, and was served via standard and certified mailing. Counsel has also provided an MC-052 form, declaring that there has been a breakdown in the attorney-client relationship such that Counsel can no longer provide effective and adequate legal counsel to Plaintiff, that Plaintiff has failed to maintain meaningful and reliable contact with Counsel despite Counsel’s requests for information and assistance in finalizing the matter, and as a result, Plaintiff has caused Counsel to needlessly expend significant time and incur needless expenses and resources. Attached to the MC-052 is a Declaration of Counsel Angelo F. Campano, who asserts that between January 27, 2026 and August 17, 2026, Counsel has not received any meaningful response, or any response at all, from Plaintiff through Perez, and details multiple dates of attempted communications and the results of those attempts. Campano attaches appropriately redacted evidence of some of their communication efforts, and states that despite these efforts, Counsel is unable to prepare for trial, which would result in prejudice to Plaintiff. The MC-052 also states Counsel has confirmed Plaintiff’s last known address is current within the previous 30 days by mail, return receipt requested.

Finally, Counsel has provided an MC-053 Order form, though the form does not include Plaintiff’s current address and telephone number, or the information required regarding upcoming hearings and trial information. Nonetheless, most of this information has been adequately provided on the MC-052 form, and the Court finds Counsel’s substantial compliance sufficient for granting the motion.

The Court also finds minimal prejudice to Plaintiff in granting this motion. It appears the case has settled as to at least some Defendants, with dismissal pending due to the involvement of a minor's compromise that may require special arrangements be made for any minor trust to be opened, and because Perez has not responded to Counsel's efforts to obtain medical records to assist in the determination of what, if any, account would be required for Plaintiff Garate. (See Campano Decl., 06/26/26.) It seems, therefore, that finalization of the settlement is contingent on information in Perez's possession and control, and Plaintiff therefore has the opportunity and ability to move forward in finalization of the settlement without counsel. Moreover, Perez has the opportunity to retain subsequent counsel if she so chooses to finalize settlement. As to Defendant Mayes, no trial date has been set, no hearings are on calendar, Plaintiff may proceed in propria persona or retain subsequent counsel, and Plaintiff will not be prejudiced in the granting of this motion. Finally, the only hearing on calendar, aside from the present motion, is an OSC re Dismissal (Settlement).

Accordingly, Counsel's motion to be relieved is GRANTED. Counsel shall provide Plaintiff's contact information, if known, in accordance with the Court's final ruling within 48 hours of this Order.

IV.

Conclusion

Plaintiff's counsel Angelo F. Campano of Campano Law Group, APC's Motion to Be Relieved as Counsel is GRANTED.

Angelo F. Campano and Campano Law Group, APC shall give notice to Plaintiff and all other parties. Further, Campano shall provide Plaintiff's last known telephone number(s), if any is known, to the Court and Defendants' counsel within 48 hours of this hearing to be included on the final MC-053 Order. If no telephone number for Plaintiff is known, Campano shall provide Plaintiff's electronic mailing address to the same within 48 hours of this Order. Otherwise, Campano shall confirm with the Court and Defendants' counsel that no telephone number, electronic mailing address, or other method of contact for Plaintiff is known within 48 hours of this Order.